



HOME IMPROVEMENT CONTRACT

DRAFT

SIDING · ROOFING · GUTTERS · SOFFIT & FASCIA

Seller: **HMP Siding & Roofing LLC** · Business address: _____ Phone: **402-889-3385** · Sales rep: _____

Nebraska contractor registration # _____ Rep phone: _____

Contract # _____ Date of this transaction: _____

1 BUYER AND JOB

Buyer name(s): _____

Phone: _____ Email: _____

Job address: _____

City: _____ State: NE ZIP: _____

Mailing address (if different): _____

Property: ☐ House ☐ Multi-unit ☐ Commercial

2 SCOPE OF WORK

TRADE	INCLUDED	WORK TO BE DONE (AREAS, QUANTITIES)	MATERIAL, BRAND, COLOR
Siding	☐		
Roof	☐		
Gutters	☐		
Soffit / fascia	☐		
Other	☐		

3 MATERIALS AND COLOR

All materials are new and match the scope above unless changed by a signed change order.

Siding color / profile: _____ Trim color: _____

Shingle brand / color: _____ Gutter color: _____

Buyer initials: _____

Buyer initials: _____

4 PRICE (CHECK ONE)

☐ **Insurance job: the insurance-approved amount (scope + approved supplements); homeowner pays their deductible.**

The price for the work above is the amount in the insurance company's written scope, plus any supplements the insurer approves in writing. The homeowner pays their deductible (see the Deductible Notice). The homeowner deals with their insurer about the claim; HMP does not negotiate the claim.

Insurance company: _____ Claim # (for reference): _____

☐ **Cash job: \$_____ total price for the work above.**

Extras the homeowner asks for that are not part of the price above are added only by a signed change order (section 7).

5 PAYMENT SCHEDULE

MILESTONE	AMOUNT	DUE
1. Deposit at signing	\$	
2. Materials delivered to the job	\$	
3. Work complete and walk-through done	\$	
4. Final balance	\$	

Make checks payable to HMP Siding & Roofing LLC. If you cancel on time (section 10), every payment is returned within 10 days.

6 WARRANTY

Workmanship warranty: _____ years from the completion date Covers: _____

Manufacturer warranty (product / years): _____

Not covered: _____

7 CHANGE ORDERS

Any change to the work, materials or price must be written and signed by the buyer and HMP before the changed work is done. Supplements the insurer approves in writing are added the same way, and the buyer gets a copy.

8 PERMITS

HMP gets the required building permits from (city / county): _____

Permit cost: ☐ Included in the price ☐ Extra: \$ _____

9 SCHEDULE AND CLEANUP

Estimated start: _____ Estimated completion: _____

Dates depend on weather and material delivery. HMP cleans up every work day, runs a magnet over the yard and driveway for nails, and hauls away all job debris.

Dumpster / trailer spot: _____

10 CANCELLATION**BUYER'S RIGHT TO CANCEL**

You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction. See the attached notice of cancellation form for an explanation of this right.

Insurance jobs: if this contract will be paid in whole or in part from a property or casualty insurance claim, you may also cancel until midnight of the third business day after you receive written notice from your insurer that all or part of the claim is not covered, if that is later.

How to cancel: mail or deliver the attached Notice of Cancellation, or any written notice, to HMP Siding & Roofing LLC at the business address above. A mailed notice counts on the day it is mailed. **Refund:** HMP returns all payments within 10 days after receiving your notice, less the reasonable value of any emergency work (such as tarping) you approved before canceling.

HMP explained my right to cancel out loud. Buyer initials: _____

11 SIGNATURES

By signing, the buyer confirms they received a completed copy of this contract and two copies of the Notice of Cancellation.

Buyer signature

Printed name

Date

Second buyer signature (if any)

Printed name

Date

HMP representative signature

Printed name and title

Date

12 DEDUCTIBLE NOTICE

NEBRASKA REV. STAT. 44-8607 · REQUIRED ON INSURANCE JOBS · SIGNED BY THE INSURED

IT IS A VIOLATION OF THE INSURANCE LAWS OF NEBRASKA TO REBATE ANY PORTION OF AN INSURANCE DEDUCTIBLE AS AN INDUCEMENT TO THE INSURED TO ACCEPT A RESIDENTIAL CONTRACTOR'S PROPOSAL TO REPAIR DAMAGED PROPERTY. REBATE OF A DEDUCTIBLE INCLUDES GRANTING ANY ALLOWANCE OR OFFERING ANY DISCOUNT AGAINST THE FEES TO BE CHARGED FOR WORK TO BE PERFORMED OR PAYING THE INSURED HOMEOWNER THE DEDUCTIBLE AMOUNT SET FORTH IN THE INSURANCE POLICY.

Signature of insured homeowner

Date

Tear-off: give the buyer both copies, filled in.

NOTICE OF CANCELLATION

COPY 1 · BUYER KEEPS

Date of transaction: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE. IF THIS CONTRACT WILL BE PAID IN WHOLE OR IN PART FROM A PROPERTY OR CASUALTY INSURANCE CLAIM, YOU MAY ALSO CANCEL UNTIL MIDNIGHT OF THE THIRD BUSINESS DAY AFTER YOU RECEIVE WRITTEN NOTICE FROM YOUR INSURER THAT ALL OR PART OF THE CLAIM IS NOT COVERED, IF THAT IS LATER.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN 10 DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELLED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE GOODS AVAILABLE TO THE SELLER AND THE SELLER DOES NOT PICK THEM UP WITHIN 20 DAYS OF THE DATE OF YOUR NOTICE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE GOODS WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE GOODS AVAILABLE TO THE SELLER, OR IF YOU AGREE TO RETURN THE GOODS TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, TO **HMP SIDING & ROOFING LLC**, AT _____ NOT LATER THAN MIDNIGHT OF _____ (OR OF THE LATER INSURANCE DATE ABOVE, IF IT APPLIES).

I HEREBY CANCEL THIS TRANSACTION.

Date: _____

Buyer's signature: _____

----- CUT HERE -----

NOTICE OF CANCELLATION

COPY 2 · BUYER CAN SEND TO CANCEL

Date of transaction: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE. IF THIS CONTRACT WILL BE PAID IN WHOLE OR IN PART FROM A PROPERTY OR CASUALTY INSURANCE CLAIM, YOU MAY ALSO CANCEL UNTIL MIDNIGHT OF THE THIRD BUSINESS DAY AFTER YOU RECEIVE WRITTEN NOTICE FROM YOUR INSURER THAT ALL OR PART OF THE CLAIM IS NOT COVERED, IF THAT IS LATER.

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